

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JOEL ROSA

Plaintiff,

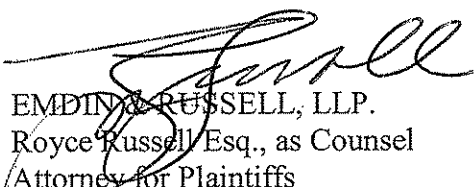
-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICERS SUAREZ, ROSARIO AND
SGT. ANGION OF THE 24TH PCT, POLICE
OFFICERS JOHN AND JOE DOE OF THE 24TH
PCT. (UNKNOWN OFFICERS TO BE NAMED
LATER), AS POLICE OFFICERS AND EACH
INDIVIDUALLYDefendants,
-----X**SUMMONS WITH
VERIFIED COMPLAINT**

INDEX NO.

Plaintiffs designate New York
County as the place of trial.
The basis of the venue is New York
County is the place where
the cause of action arose.**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 8, 2013
EMDIN & RUSSELL, LLP.
Royce Russell Esq., as Counsel
Attorney for Plaintiffs
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

Police Officer Suarez
c/o 24th pct
151 West 100 Street
New York, New York 10025

Police Officer Rosario
c/o 24th Pct.
151 West 100 Street
New York, New York 10025

Sergeant Angion
c/o 24th Pct.
157 West 100 Street
New York, New York 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOEL ROSA

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICERS
SUAREZ, ROSARIO, AND SGT. ANGION
OF THE 24TH PCT, POLICE OFFICERS JOHN AND
JOE DOE OF THE 24TH PCT. (UNKNOWN
OFFICERS TO BE NAMED LATER), AS
POLICE OFFICERS AND EACH
INDIVIDUALLY

Defendants.
-----X

VERIFIED COMPLAINT

INDEX NO.

Plaintiff JOEL ROSA by his attorney, Emdin & Russell, LLP., as and Verified Complaint
alleges as following:

NATURE OF CLAIMS

1. Upon information and belief at all times herein after mentioned , the defendants, the City of New York, herein after referred as to "City" was and still is a Municipal Corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief at all times herein after mentioned the defendants, the City of New York herein after referred to as "City" its agents, servants and/or employees operated maintained and controlled the New York City Police Department, herein after referred to as "NYPD," including all Police Officers therein.
3. Upon information and belief Police Officers Suarez, Rosario, Sgt. Angion, and Officers John and Joe Doe, on February 19, 2012 and thereafter respectfully were employed as Police Officers by the City and/or NYPD, and was assigned at all relevant times set forth

below to the 24th Precinct and acted in the capacity as Police Officers and employees of the City of New York and/or NYPD.

4. Herein after Suarez, Rosario, and Sgt. Angion as well as other Police Officers unknown and therefore are not named are collectively referred to as "Officers."
5. At all relevant times herein after mentioned Plaintiff Joel Rosa shall be herein after referred to as "Rosa."
6. At all relevant times Plaintiff Rosa was a resident of Palm Desert County, residing at 37565 College Drive, Palm Desert, CA 92211

STATEMENTS OF FACTS

7. That on February 19, 2012 at approximately 5:00- 5:45 P.M. Rosa was lawfully driving along Central Park West between 96th and 97th Street in New York County when he observed his relative being detained by the "Officers"
8. Rosa was in the car with his mother, daughter, and niece driving to Pennsylvania and upon information and belief was following his cousin Eduardo who was driving another vehicle when stopped by the "Officers"
9. Rosa, upon observing his cousin's car being stopped, then stopped his vehicle, exited and approached the Defendant Officers..
10. Rosa, upon exiting and approaching the Defendant Officers had his own Federal badge in his hand.
11. Rosa introduced himself with his badge exposed in his hand and shook Defendants Suarez' hand.
12. Thereafter Rosa inquired as to why his cousin was being detained.

13. Defendant Officer Suarez stated " It was none of his business." Rosa commented, and Suarez responded and stated " I don't get paid to be nice."
14. Rosa then requested Defendant's badge number whereupon the Defendants became belligerent and questioned whether Rosa's badge was authentic. Rosa responded and further informed the Defendants he was carrying his license issued firearm. Rosa further displayed his homeland security badge with picture.
15. Rosa did not engage in any further insulting conversation and requested the Defendants' Supervisor.
16. Rosa was then ordered to his vehicle for which he complied.
17. Upon information and belief, when the Defendants' Supervisor Sergeant Ancion arrived and Rosa was ordered out of his vehicle and was told to approach the Defendants whereupon Rosa informed the Supervisor that he requested his presence because of his Officers' conduct.
18. It was at this time Police Officer Rosario ordered Rosa to turn around and then Rosa was placed under arrest.
19. Rosa asked whether he was being arrested and the Defendants stated no we are just going to take you down to the station.
20. During this time Rosa's daughter was crying hysterically as she observed her father being arrested. Additionally Rosa's mother suffered an anxiety attack.
21. Rosa was then transported to the 24th precinct.
22. Rosa informed the Defendants while he was being transported to the 24th pct that his handcuffs were not locked. Rosa was aware of this because as a Federal Agent this is part of his employment.

23. Rosa told the Defendants that if you do not lock them the handcuffs will become tight.

Rosa was ignored.

24. Rosá's hands and fingers eventually became numb. As he repeatedly complained about the tightness of the handcuffs.

25. Rosa was told to "Stop complaining," and "I don't know where you think you are but this isn't California," "This is New York City" or "This is my City."

26. Lastly, the Defendant(s) stated Rosa's badge does not mean "Shit."

27. The Defendant(s) further stated "You fucked up when you asked for my name and badge number."

28. After being detained for (1) hour, Rosa was released but not before being issued a summons.

29. Rosa was obligated to report this arrest to his Federal Agency for whom he is employed.

30. Upon being issued a Summons, Rosa was told that if he went down to Court the case would be dismissed.

31. Rosa then changed his flight plans to attend Court on Tuesday, a day after the holiday, and was informed no paperwork exist and he will be notified whether a summons was actually filed on or before May 3, 2012.

32. On or about April 24, 2012 Rosa was notified by way of a letter his case was dismissed.

33. All detentions, arrests, imprisonment, and the physical contact with Rosa was all without just cause, provocation and said actions were excessive, offensive to Plaintiff Rosa, unprivileged and without his consent.

34. A notice of claim of Rosa's notice of intention to sue for damages, indicating, the date, the time, (when), the place, (where), and the manner in which the claim arose were duly served upon the comptroller of the Defendants "City" and/or "NYPD."
35. That a 50(H) hearing of Joel Rosa was held on September 12, 2012.
36. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the Defendants and the Defendants have neglected or refused to make any adjustments or payment thereof.
37. That this action is commenced within one year and 90 days after the cause of action arose.
38. It is hereby alleged pursuant CPLR 1603, that this action is exempt from the operation of CPLR 1601, by reason of one or more of the exceptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL NAMED
DEFENDANTS FOR FALSE ARREST ON BEHALF OF PLAINTIFF JOEL ROSA**

39. The Plaintiff, Rosa repeats reiterates and re-alleges each and every allegation contained in paragraph "1" through "38" with the same force and effect as of more fully and at length set forth herein.
40. That on the 19th day of February 2012, at the appropriate hours of 5:00 P.M.- 5:45 P.M., the Defendants and their agents, servants and/or employees intentionally illegally, detained, handcuffed, arrested and imprisoned Plaintiff- Rosa without any just cause or grounds therefore.
41. Plaintiff Rosa was held against his will under full force to submit to the foresaid arrest and imprisonment entirely against his will. The Plaintiff was then transported to the 24th

precinct and detained for one hour before he was released on his own recognizances on February 19, 2012.

42. Plaintiff Rosa named herein was wholly innocent of any crime and did not contribute in any way or measures to his arrest by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

43. That the defendants, their agents, servants, and/or employees as set forth above, intended to seize handcuffed and arrest Plaintiff Rosa. Plaintiff Rosa was conscious of his arrest and confinement and did not consent to his detention, arrest, imprisonment and/or confinement and said arrest, imprisonment and/or confinement was not otherwise privileged.

44. That by reason of the aforesaid false detention, arrest, imprisonment and false charges filed against Plaintiff Rosa he was subjected to great indignity, humiliation, pain and great distress of mind and body and said Plaintiff Rosa has been damaged.

45. That by reason of the aforesaid, the Plaintiff Rosa has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FO AGAINST ALL NAMED DEFENDANTS

A SECOND CAUSE OF ACTION FOR FALSE ARREST AND IMPRISONMENT

ON BEHALF OF PLAINTIFF ROSA

46. The Plaintiff Rosa repeats, reiterates and re-alleges such and every allegation contained in paragraph "1" through "45" with the same force and effect as if more fully and length set forth herein.

47. That beginning on the 19th day of February, 2012, at the approximate hours of 5:00 – 5:45 P.M. the Defendants, and their agents, servants and/or employees intentionally detained, handcuffed, arrested and imprisoned Plaintiff Rosa, without any just cause or grounds therefore.
48. Plaintiff Rosa was held against his will under full force of arms until he was released on February 19, 2012, on his own recognizance.
49. That said imprisonment was caused by the Defendants, their agents, servants and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the Plaintiff Rosa was guilty of any criminal, or that Defendants had just cause to imprison Plaintiff Rosa.
50. Plaintiff Rosa was wholly innocent of any crime and did not contribute to in any way or manner to his arrest or imprisonment by the Defendants, their agents, servants and/or employees and Plaintiff Rosa was forced to submit to the aforesaid false imprisonment entirely against his will.
51. That the Defendants, their agents, servants, and/or employees as set forth above intended to confine Plaintiff Rosa of his confinement, the Plaintiff Rosa did not consent to the confinement and the confinement was not otherwise privileged.
52. That by reasons of the aforesaid, the Plaintiff Rosa has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR THE THIRD CUASE OF ACTION FOR ASSAULT AND BATTERY
AGAISSNT THE NAMED DEFENDANTS ON BEHALF OF THE PLAINTIFF-ROSA

53. The Plaintiff Rosa repeats, reiterate and re-alleges each and every allegation contained in paragraph “1” through “52” with the same force and effect as if fully set forth herein.

54. That upon information and belief on the 19th of February, 2012, commencing at the approximate hour of 5:00 P.M. – 5:45 P.M. at the location of Central Park West between 96th and 97th Street in New York County Defendants-Officers and upon information and belief other officers unknown, while acting in the scope of their employment as Police Officers and as agents for the Defendants the “City,” without just cause or provocation and with great force and violence, grabbed, dragged, struck, beat, threatened handcuffed, search fingerprinted and photographed the Plaintiff Rosa as set forth throughout the complaint herein.
55. Upon information and belief the Officers had absolutely no reason or great cause to assault and batter Rosa – Plaintiff.
56. The Officers conduct and use of force was far in excessive of any necessary force to secure the premises, effect an arrest, to maintain control and/or control of Plaintiff Rosa individually.
57. The assault and battery of “Rosa” Plaintiff was committed while the Plaintiff was offering no resistance.
58. That the Defendants, their agents, servants, and/or employees, including unknown Police Officers and the arresting Officers, acting as agents on behalf of the Defendant “City” within the scope of their employment, intentionally withheld and assaulted and battered Rosa, the Plaintiff, in that he has the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiff Rosa.
59. That said acts caused apprehension of such offensive conduct to the Plaintiff whom the Defendants “Officers” and possible others unknown, in a hostile and/or offensive manner

seized, touched, illegally searched and handcuffed the Plaintiff Rosa without his consent and with the intention of causing harmful and/or offensively bodily contact to the Plaintiff and caused such battery/assault in and about his wrists body and limbs.

60. That by reason of the aforesaid intentionally assault and battery, the Plaintiff suffered physical and/or psychological injuries to his body and mind. Plaintiff was rendered sick, sore and also suffered numbness and bruising to his wrists Plaintiff also suffered conscious pain and suffering and that he was otherwise damaged.

61. That by reason of the aforesaid, the Plaintiff Rosa has been damaged in a sum exceeding the jurisdictional limit of the lower courts.

AS AND FOR THE FOURTH CAUSE OF ACTION FOR INFLECTION OF
EMOTIONAL DISTRESS ON BEHALF OF THE PLAINTIFF, AGAISNT THE
NAMED DEFENDANTS

62. The Plaintiff repeats, reiterates and re-alleges each and every allegation continued in paragraph "1" though "61" with the same force and effect as if more fully and at length set forth herein.

63. That New York City Police Officers, including but not limited to the named Defendants "Officers," while acting in the scope of their employment, acted in a manner including but not limited to the allegation set fort, respectively as to each Plaintiff in the statement of facts herein with behavior/conduct that exceeded all reasonable bounded of decency and with the intent to inflict emotional distress upon, Plaintiff Rosa.

64. Defendants battering, detaining, assaulting and imprisoning Plaintiff Rosa to name a few intentional acts inflicted emotional distress upon Plaintiff Rosa.

65. That Plaintiff Rosa did sustain emotional distress as a result of the Officers' conduct and the City as the Officers' employer.

66. That by reason of the aforesaid, the Plaintiff Rosa have been separately damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS FOR THE FIFTH CAUSE OF ACTION ON BEHALF ON PLAINTIFF ROSA

AGAINST THE NAMED DEFENDANTS OFFICERS FOR 42 U.S.C. 1983

VIOLATIONS

67. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs number "1" through "66" with the same force and effect if more fully and at length set forth herein.

68. By the aforesaid, the Defendant/Officers individually and collectively have violated Plaintiff's right to privacy under the First and Fourteenth Amendment to be free of illegal searches and seizures under the Fourth and Fourteenth Amendment and due process of the law and Equal protection of the laws under the Fourteenth Amendment to the U.S. constitution, thereby giving rise to a cause of action pursuant to 42 U.S.C. 1983.

69. The conduct and actions of the named Defendants police officers, i.e. "Officers'," acting under color of law, in seizing the plaintiff, and upon information and belief in searching the Plaintiff; in assaulting/ battering Plaintiff Rosa; and in falsely arresting, imprisoning, incarcerating, filing false reports, providing false evidence and conspiring against Plaintiff Rosa, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts; was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and

emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1982, et seq.,

70. The "Officers" actions, individually and collectively deprived the Plaintiff of his rights including, but not limited to, his right to free speech, the right to privacy; under the First and Fourth Amendments guaranteeing protection against unlawful seizure of his person, the Fifth, Sixth and Fourteenth Amendments guaranteeing due process, right to fair trial and equal protection under the law, and the Eighth Amendment guaranteeing protection from cruel and unusual punishment, and Title 42 U.S.C. 1983 et seq.

71. That by reason of the aforesaid, Rosa has been damaged in a sum exceeding the jurisdictional limits of the lower courts and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C Section 1988, and such other relief as to the court may seem just and proper.

AS FOR THE SIXTH CAUSE OF ACTION AGAINST THE CITY AND FOR
NYPD UNDER 42 U.S.C 1983 MONELL CLAIM ON BEHALF OF THE
PLAINTIFF.

72. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "71" with the same force and effect as if more fully and at length set forth herein.

73. At all times material to this complaint, the Defendant the City of New York, acting through New York City Police Department, had in effect de facto policies, practices, and/or customs that were a direct and proximate cause of unconstitutional conduct of the defendant officers.

74. At all times material to this complaint, the defendant the City of New York, acting through New York City Police Department, had in effect de facto policies, practices, and/or customs that were a direct and proximate cause of unconstitutional conduct of the defendant officers. These de facto policies, practices and customs include, inter alia: the failure to properly screen, test and train police officers; the retention of unfit officers; failing to retrain fit and unfit officers; failing to properly supervise/monitor unfit officers; failing to properly investigate allegations of false arrest, excessive use of force, racial targeting or bias, failing to provide medical attention in a timely fashion; illegal search and seizure, strip searches; illegal entries into citizens homes, and police cover-up; permitting officers to fill out false paperwork, sign false complaints and testify falsely; covering up instances of assaults and battery by police officers by falsely charging citizens with having committed crimes such as disorderly conduct, obstruction of governmental administration, resisting arrest and assault of police officers and by retaining officers alleged to have committed said conduct as well as officers present when said conduct was committed, yet failed to intervene or report said misconduct.

75. The City's and NYPD's tolerance for brutality leads to a systematic practice and policy within the NYPD wherein officers seem fairly tolerant, both outwardly and inwardly of police brutality, silence in the face of said brutality and/or illegal arrest. A systematic practice where officers who report said misconduct are not viewed as "good cops", but rather as outcasts and snitches and are isolated, ostracized and often transferred.

76. The "City" and/or "NYPD" are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with a few blows and bruises delivered to the citizens of New York City with a heavy use of

excessive force delivered to minorities such as "the plaintiff" herein. Additionally officers routinely illegally stop, frisk, imprison, arrest, assault, batter, all while alleging false facts such as the "Plaintiff was disorderly", as in the instant case. Moreover any inquiry or assertion of rights often lead to excessive use of force, use of fists to face, a nightstick to the ribs and/or body, mace to the eyes, and the knees to groin or an arrest which are seen as the realities of policing. The officers are emboldened knowing that they will not be vigorously investigated, suitably disciplined, or even reported by fellow officers or their supervisors for said conduct. They routinely cover-up their actions by filing false charges against citizens accusing them of any combination of harassment, disorderly conduct, resisting arrest, obstruction of governmental administration and/or assaulting a police officer.

77. The defendant the City of New York and New York City Police Department had or should have had, knowledge of the vicious and violent tendencies of its employees, including police officers and their supervisors, of the illegal conduct of its employees, of racial profiling committed by its employees, of the patterns of false arrests and ensuing cover-ups, of illegal stops, questioning, searches and seizures, of excessive and unlawful use of force; of illegal use of police equipment; of illegal entry to citizens homes without a warrant and/or exigent circumstance by police officers committed against the citizens of New York City, including "The Plaintiff" herein, by members of the NYPD, including all of the named police officer defendants.

78. The defendant the City of New York and New York City Police Department knew or should have known of the unlawful actions of all of the named police officer, defendants

through actual and constructive notice of their unlawful activities, including, but not limited to those allegations as set forth herein above.

79. The defendant the City of New York failed to exercise reasonable care by retaining and not terminating the employment of all said named police officer defendants or taking other appropriate corrective action. The occurrence complained herein is due to the recklessness, and/or the policies and customs de facto or otherwise of the defendants, the City of New York and/or NYPD.
80. On information and belief, the defendants, the City of New York and New York City Police Department have failed to effectively screen, hire, train, supervise and discipline their police officers, including all of the named defendants, police officers, for their propensity for misconduct, including lack of truthfulness, and for their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing the named police officer defendants herein to be in a position to unjustifiably, manufacture evidence, illegally enter the subject premises, damage property of the subject premises, seize, search, arrest, strip search, restrain and assault "the plaintiff" and to otherwise cause them injury and violate their federal and state constitutional rights.
- (First, Fourth, Fifth, Sixth, Eight and Fourteenth)
81. On information and belief, one or all of the named police officer defendants have been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the City of New York that all of the named police officer defendants were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by "the plaintiff" herein.

82. On information and belief, the defendants, the City of New York and the New York City Police Department, maintained an inadequate structure for risk containment and stress management relative to its police officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient at the time selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual police officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; and its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The effect of this was to permit police officers to function at levels of significant and substantial risk to the public.

83. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant the City of New York and New York City Police Department, have permitted and allowed the employment and retention of individuals as police officers whose individual circumstances place the public or segments thereof at substantial risk of being victims of violent and fraudulent behavior. Such policies, practices, customs, and/or usages are a direct and proximate cause of the conduct alleged herein and are otherwise a direct and proximate cause of the injuries to "the plaintiff" herein.

84. As a direct and proximate result of the City of New York's wrongful policies, practices, customs and/or usages complained of herein, "the plaintiff" individually and collectively, suffered physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

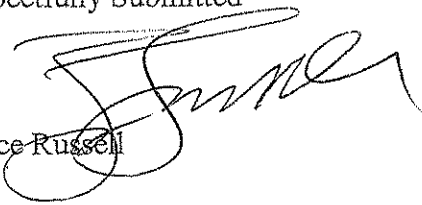
85. Those aforesaid acts violated "the plaintiff" constitutional rights as set forth in the Constitution of the United States, the State of New York and under 42 U.S.C. Section and/or 1986.

86. That by reason of the aforesaid, the Plaintiff Rosa, has been injured in mind and body and has been damaged.

87. That by reason aforesaid, Rosa has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

Respectfully Submitted

Royce Russell

A handwritten signature in black ink, appearing to read "Royce Russell", is written over the printed name. The signature is stylized with a large, sweeping initial "R" and a long, horizontal stroke extending to the right.

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

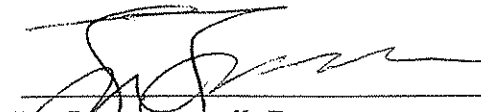
That I am an attorney associated with the law firm of Emdin & Russell, L.L.P., the attorneys of record for the Plaintiffs in the within action; that I have read the foregoing **Verified Complaint** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this **Verified Complaint** is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
February 8, 2013


By: Royce Russell, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

JOEL ROSA

Claimant,
-against-

THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT, POLICE OFFICER SUAREZ AND ROSARIO OF THE 24TH PCT., POLICE OFFICERS JOHN AND JOE DOE OF THE 24TH PCT.,(UNKNOWN OFFICER TO BE NAMED LATER), AS POLICE OFFICERS AND EACH INDIVIDUALLY

Respondent(s).

SUMMONS AND VERIFIED COMPLAINT

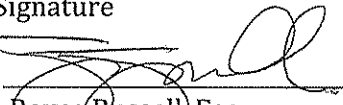
LAW OFFICES OF EMDIN & RUSSELL
Attorney for Claimant
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

TO: Corporation Counsel
Attorney for Respondents
100 Church Street
New York, New York 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: February 8, 2013

Signature


Royce Russell Esq.

=====

PLEASE TAKE NOTICE

[] NOTICE OF ENTRY
that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

[] NOTICE OF SETTLEMENT that an order of which the within is a true copy will be
presented for settlement to the HON. one of the judges of the within named Court, at
on 20__